

TENTATIVE RULINGS

FOR: August 13, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

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Dept. B Zoom

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Corinne T. Rau

18PR000156

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE ESTATE

APPEARANCE REQUIRED

.....

Estate of Donald Gene Ware Stoddard

26-25034

PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: There is no Duties and Liabilities form (DE-147) in the Court's file. (See Prob. Code § 8404.) If one is filed prior to the hearing, the Court will grant the Petition, appoint Richard S. Thomas as probate referee, and set the matter for a Status Hearing Re: Final Distribution on August 12, 2027 at 8:30 a.m. in Dept. A.

If no DE-147 is filed prior to the hearing, the matter will be CONTINUED to September 10, 2026, at 8:30 a.m. in Dept. A. to allow Petitioner time to file the required form.

.....
Conservatorship of Dennis Cole Makemson

26PR000146

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON AND ESTATE

TENTATIVE RULING: The matter is CONTINUED to September 10, 2026, at 8:30 a.m. in Dept. A to allow Petitioner time to file a Confidential Capacity Assessment and Declaration form (Judicial Counsel form GC-335). The Order Appointing Temporary Conservator is hereby modified to expire on the continued hearing date.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

****at 9:30 a.m.****

Andre Nave-Hernandez v. SRGA Resort, LP et al

25CV002138

[1] DEFENDANT SRGA RESORT, LP'S MOTION FOR LEAVE TO WITHDRAW ITS ANSWER

TENTATIVE RULING: The Motion is GRANTED IN PART. Defendant SRGA Resort, LP (SRGA) is granted leave to withdraw its Answer on or after October 1, 2026. Plaintiff Andre Nave-Hernandez is directed to proceed with all haste to amend his Complaint as indicated and serve Notice of Entry of this Court's concurrent order regarding discovery.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant SRGA Resort moves, pursuant to Code of Civil Procedure 585, subdivision (b), for leave to withdraw its Answer to the operative Complaint filed by Plaintiff Andre Nave-Hernandez on grounds that SRGA is without resources to litigate the instant dispute and judicial economy would be served by permitting Plaintiff to obtain a default judgment against SRGA.

SRGA cites caselaw sanctioning a trial court's decision to permit a defendant to withdraw its operative answer. (See, *e.g.*, *Brown v. Brown* (1932) 125 Cal.App. 429, 438 [held: where no fraudulent purpose is established, appellant "is in no position to complain of the court's action in permitting his co-defendant's answer to be withdrawn"]; see also *Israel v. Super. Ct. of San Diego Co.* (1919) 43 Cal.App. 711, 713 ["That the court in permitting the defendant Bryan to withdraw his answer was acting within its jurisdiction is not and, in our opinion, cannot be, questioned in this proceeding"].)

Plaintiff concedes that the Court has such authority. (See Plaintiff's Response at 1:23-25 ["Plaintiff Andre Nave-Hernandez does not oppose the Court's discretion to permit Defendant SRGA Resort, LP . . . to withdraw its Answer"].) However, Plaintiff requests that the Court grant the Motion only under the following four conditions: "(1) that withdrawal take effect only after Defendant SRGA serves verified, Code-compliant supplemental discovery responses as described above; (2) that the order not moot, and be without prejudice to, Plaintiff's pending Motion to Compel Further Responses and for Sanctions; (3) that the order expressly preserve Plaintiff's claims, remedies, and evidentiary record against Defendant Auberge Resorts, LLC and any other person or entity, including any successor-in-interest to Defendant SRGA; and (4) that the order not be construed to shorten or waive Plaintiff's ordinary procedural rights to amend the Complaint's demand for judgment before entry of default." (*Id.* at 7:7-15.)

The Court acknowledges that Plaintiff filed a Motion to Compel discovery responses from SRGA on May 19, 2026 (Discovery Motion), that the Discovery Motion was pending at the time SRGA filed the instant motion, and is the subject of the Court's contemporaneous ruling. For this reason, the Court grants SRGA leave to withdraw its Answer after its supplemental discovery responses are due.

The third and fourth conditions, however, are vague and ambiguous as presented. Moreover, as requests for Court action, they are not properly before the Court on the instant motion.

Based on the foregoing, the Motion is GRANTED IN PART. SRGA is granted leave to withdraw its Answer on or after October 1, 2026.

[2] PLAINTIFF ANDRE NAVE-HERNANDEZ’S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT SRGA RESORT, LP, TO FORM INTERROGATORIES EMPLOYMENT, SET ONE, REQUEST FOR PRODUCTION, SET ONE AND SPECIAL INTERROGATORIES, SET ONE, AND FOR SANCTIONS

TENTATIVE RULING: The motion is GRANTED IN PART. Defendant SRGA Resorts, LLC (SRGA), is ordered to serve, no later than 14 calendar days after Notice of Entry of this order, further responses to Plaintiff’s Form Interrogatories Employment, Set One, Nos. 207.1, 207.2, and 214.1, Special Interrogatory Nos. 2, 3 5, and 6, and Request for Production Nos. 11 and 12. The Motion is DENIED in all other respects, including the request for an award of monetary sanctions. Plaintiff Andre Naves-Hernandez is directed to file and serve a Notice of Entry of the instant order.

Plaintiff Andre Naves-Hernandez moves, pursuant to California Code of Civil Procedure Sections 2030.300, subdivision (d), 2031.310, subdivision (h), 2023.030 subdivision (a) and 2023.040, for an order compelling Defendant SRGA Resort, LP, to produce further responses to Plaintiff’s Form Interrogatories, Employment, Set One., Nos. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, 216.1, Request for Production, Set One., Nos. 1-12, and Special Interrogatories, Set One, Nos. 1-6 (collectively, the Subject Discovery). Plaintiff also moves for an award of monetary sanctions against SRGA in the amount of \$1,560.00.¹

A. GENERAL MATTERS

Please see the discussion regarding the propriety of preliminary statements, general objections and objections set forth in the concurrently published ruling on Plaintiff’s Motion to Compel Further Discovery Responses from Defendant Auberge Resorts, LLC. The Court incorporates that discussion herein.

B. EMPLOYMENT INTERROGATORIES

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that...[a]n answer to a particular interrogatory is evasive or incomplete...[a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate...[or]...[a]n objection to an interrogatory is without merit or too general.” (§ 2030.300, subd. (a).)

A party upon whom interrogatories are propounded, ‘has a general duty to conduct a reasonable investigation to obtain responsive information [citation] and must furnish information from all sources under his or her control. [Citation.]’ (*Regency Health Services, Inc. v. Super. Ct.* (1998) 64 Cal.App.4th 1496, 1504 (*Regency Health*)). “Verification of the answers is in effect a declaration *that the party has disclosed all information which is available to him*. If only partial answers can be supplied, the answers should reveal all information then available to the party. If a person cannot furnish details, he should set forth the efforts made to secure the information. He

¹ All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.

cannot plead ignorance to information which can be obtained from sources under his control.” (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782 (*Deyo*). Italics added.)

Employment Form Interrogatory No. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 211.1, 214.2, 215.1., 215.2: The Motion is DENIED as to these interrogatories. The respective substantive answer to each appears to be complete and code compliant. Plaintiff fails to persuade the Court that it is deficient or that anything further is required.

Employment Form Interrogatory No. 207.1, 207.2, 214.1. The Motion is GRANTED to these requests. SRGA’s refusal to answer these interrogatories is not well taken. SRGA fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Employment Form Interrogatory Nos. 211.2, 216.1. The Motion is DENIED as to these interrogatories. Since the Court is granting SRGA leave to withdraw its Answer, these interrogatories are MOOT.

C. REQUESTS FOR PRODUCTION

The burden on the propounding party is higher in compelling responses to production of documents than in compelling responses to interrogatories. The motion to compel must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Super. Ct.* (2002) 95 Cal.App.4th, 92 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Super. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland v. Super. Ct.*, *supra*, at 98.)

Request for Production Nos. 1-8, 10: The Motion is DENIED as to these requests. The respective substantive answer to each appears to be complete and code compliant. Plaintiff fails to persuade the Court that it is deficient or that anything further is required.

Request for Production Nos. 11, 12. The Motion is GRANTED as to these requests. The Court finds, from a review of the operative pleadings, good cause for each request.

D. SPECIAL INTERROGATORIES

Special Interrogatory Nos. 1, 4: The Motion is DENIED as to these interrogatories. The respective substantive answer to each appears to be complete and code compliant. Plaintiff fails to persuade the Court that any are deficient or that anything further is required.

Special Interrogatories 2, 3, 5 and 6: The Motion is GRANTED as to these interrogatories. SRGA refused to provide any substantive response to the interrogatories. As to third-party right to privacy, SRGA may redact the complainant’s name as well as the guest’s name on in response

to Special Interrogatory No. 5. SRGA fails to justify any other of its asserted objections. As such, all such objections, save those based on third party right to privacy, attorney-client privilege and/or attorney work product are overruled.

E. SANCTIONS

The Court finds that other circumstances make the imposition of sanctions unjust. (See §§ 2030.300, subd. (d), and 2031.310, subd. (h).)

“‘It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

Given SRGA’s repeated offer to extend the motion to compel deadlines in light of its pending request to withdraw its Answer, the Court finds sanctions are not warranted.

Based on the foregoing, Plaintiff’s request for an award of monetary sanctions is DENIED.

[3] PLAINTIFF ANDRE NAVE-HERNANDEZ’S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT AUBERGE RESORTS, LLC, TO FORM INTERROGATORIES EMPLOYMENT, SET ONE, REQUEST FOR PRODUCTION, SET ONE, SPECIAL INTERROGATORIES, SET ONE, REQUEST FOR ADMISSIONS, SET ONE, SPECIAL INTERROGATORIES, SET TWO, FORM INTERROGATORIES GENERAL, SET ONE, AND FOR SANCTIONS

AMENDED TENTATIVE RULING: The motion is GRANTED IN PART. Defendant Auberge Resorts, LLC (Auberge), is ordered to serve, no later than 14 calendar days after Notice of Entry of this order, further responses to Plaintiff’s Form Interrogatory Nos. 12.4, 12.5, 12.7, and Special Interrogatory Nos. 3, 12-14, 17-23, 25, and 28, . The Motion is DENIED in all other respects, including the request for an award of monetary sanctions. Plaintiff Andre Naves-Hernandez is directed to file and serve a Notice of Entry of the instant order.

Plaintiff Andre Naves-Hernandez moves, pursuant to California Code of Civil Procedure Sections 2030.300, subdivision (d), 2031.310, subdivision (h), 2023.030, subdivision (a), 2023.040, and 2033.290, for an order compelling Defendant Auberge Resorts, LLC (Auberge), to provide further responses to Plaintiff’s Form Interrogatories Employment, Set One, Nos. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, 216.1; Request for Production, Set One, Nos. 1-12; Special Interrogatories, Set One, Nos. 1-6; Request for Admissions, Set One, Nos. 1, 4-6, 9-18, 20-32; Special Interrogatories, Set Two, Nos. 7-29; and Form Interrogatories General, Set One, Nos. 4.1, 12.1, 12.2, 12.3, 12.4, 12.5,

12.6, 12.7, 13.1, 13.2, 17.1. Plaintiff also moves for an award of monetary sanctions against Auberge in the amount of \$1,560.00.²

F. GENERAL MATTERS

Plaintiff first contends that Auberge’s initial responses to the subject discovery are improper because they include preliminary statements and general objections. (See Support Memo at 3:11-4:9.) Plaintiff correctly notes that the Civil Discovery Act requires a responding party to respond separately to each interrogatory and to each request for production. It does not necessarily follow, however, that the inclusion of preliminary statements and/or general objections renders an otherwise proper response improper. Plaintiff fails to cite to authority supporting the suggestion that the Court has authority to order a responding party to serve further responses simply because they have included, in responses, superfluous matters and/or objections.

Similarly, Plaintiff contends that Auberge “must withdraw its meritless objections” to the subject discovery. (See Support Memo at 4:10-11.) However, Auberge is entitled to assert whatever objections it feels are appropriate. The question of whether they are meritorious is for the Court, on the instant motion to compel. (See *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220–221 [held: for interrogatories, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but “the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory”].) Plaintiff fails to cite to authority providing that the Court may order a responding party to withdraw objections – even meritless objections – that are timely and properly asserted.

Auberge argues in its Responsive Separate Statement, as to most of the subject discovery, that Plaintiff does not specifically contend or argue that the responses are insufficient. Rather, Plaintiff repeatedly argues that Auberge’s objections are meritless, and then states, “[p]lease withdraw your objections and confirm that your answer is complete.” (See, *e.g.*, Separate Statement at 8:9-10; see also Responsive Separate Statement at 12:6-7 [“Plaintiff does not take issue with the extent of the substantive response to this interrogatory but rather focuses on the objections that were made”].)

As noted above, the Court agrees that Auberge is not required to withdraw its objections. However, regardless of its objections, if Auberge elects to respond to an interrogatory, that response “shall be as complete and straightforward as the information reasonably available to the responding party permits . . . [and] . . . [i]f the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220.) With regard to demands for production of documents, “[a] statement that the party to whom a demand . . . has been directed will comply with the particular demand *shall state* that the production, inspection [etc.] demanded, will be allowed *either in whole or in part*, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production. (§ 2031.220. *Italics added.*)

² All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.

In the context of the foregoing statutes, the Court shares Plaintiff's frustration with Auberge's failure and refusal simply to state whether it is withholding information or documents based on its asserted objections. The Court notes Auberge's tendency to assert the same objections, without apparent discrimination, and in boilerplate fashion, to each discovery request. The Court also notes Auberge's failure to clearly state, through its Responsive Separate Statement, whether, and if so to what extent, it is withholding information based on specific objections. Similarly, Auberge fails to state whether its answers are complete. In fact, Auberge's Responsive Separate Statement, by asserting the validity of certain objections, strongly suggests that Auberge *is*, in fact, withholding information based on objections. (See, *e.g.*, Responsive Separate Statement at 12:11-21.)

The Court is sympathetic to Plaintiff's argument that Auberge's responses are evasive in light of the number and boilerplate style of objections asserted, and its unwillingness to clearly state whether the substantive responses are complete. Moreover, Auberge's asserted justifications for many of its objections are strikingly abstract of discussion of the discovery request at issue.

Based on the foregoing, the Court, by Minute Order of July 16, 2026, continued the hearing to this date, ordered the parties to further meet and confer, and ordered Auberge "to identify for Plaintiff, in a writing served no later than July 23, 2026, each of the subject discovery requests as to which it is withholding information and/or documents based on an objection. For each, it shall identify the objection(s) and provide a brief argument, *specific to the subject request and the specific objection*, supporting its decision to withhold the information. The parties shall then meet and confer in an attempt to resolve any disputes regarding such withholding." The Court then "directed" the parties "to file, not later than July 31, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel further production, in light of the parties' meet and confer efforts."

On July 31, 2026, Plaintiff filed a Separate Statement. Auberge failed to do so. Plaintiff concedes, however, that Auberge served a "Discovery Statement" on July 23, 2026. (See Separate Statement at 2:9-11.) Plaintiff did not provide the Court a copy of the Discovery Statement. The Court presumes that the Discovery Statement conforms to the Court's July 16, 2026, mandates, as Plaintiff does not contend otherwise. Plaintiff represents that "Auberge agreed to serve verified supplemental responses to Form Interrogatory Employment No. 216.1, and Special Interrogatories (Set Two) Nos. 7, 10, and 14, and 24, and to produce the Hotel Management Agreement between Auberge and SRGA. Plaintiff withdraws these five items from the pending Motion." (Separate Statement at 4:6-11.)

The fact that, after the Court's July 16, 2026 Order, the parties were unable to resolve more than just five items from the over 50 items at issue is disappointing. "It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.] [Citation.] A self-executing discovery system is 'one that operates without judicial involvement.' [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a

party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) The pending motions that are the subject of this Tentative Ruling have taken significant time and attention from Court Counsel and the Court. Should similar motions be brought, without meaningful meet and confer efforts which results in resolution of the vast majority of the issues prior to Court involvement, the Court will strongly consider appointing a discovery referee, *sua sponte*. (Code Civil Proc. section 639, subd. (a)(5).)

The Court proceeds to analyze the remaining requests.

G. REQUESTS FOR ADMISSIONS

“RFAs are different from other civil discovery tools such as depositions, interrogatories, and requests for documents. ‘Most of the other discovery procedures are aimed primarily at assisting counsel to prepare for trial. Requests for admissions, on the other hand, are primarily aimed at setting at rest a triable issue so that it will not have to be tried. Thus, such requests, in a most definite manner, are aimed at expediting the trial.’ [Citations.]” (*St. Mary v. Super. Ct.* (2014) 223 Cal.App.4th 762, 774-775; see also § 2033.410.) The consequence of failing to admit a provable fact is established by statute. “[i]f a party fails to admit ... the truth of any matter when requested to do so under this chapter, and if the party requesting that admission thereafter proves ... the truth of that matter, the party requesting the admission may move the court for an order requiring the party to whom the request was directed to pay the reasonable expenses incurred in making that proof, including reasonable attorney’s fees.” (§ 2033.420.)

A party moving to compel further responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (§ 2031.310, subd. (b)(1).) No such showing is required, however, of a party moving to compel further responses to a request for admissions. (See Code Civ. Proc. § 2033.290, subd. (b).) In this procedural regard, a motion to compel further responses to requests for admissions is governed by language identical with that providing for a motion to compel further responses to interrogatories. (See Code Civ. Proc., § 2030.300, subd. (b).) Based on the foregoing, while the party propounding requests for admissions may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting the request. (See *Coy v. Super. Ct.* (1962) 58 Cal.2d 210, 220–221.)

Request for Admission Nos. 1, 5-6, 9, 16-18, 20, 26-27: The Motion is DENIED as to these Requests. Auberge admitted the truth of the respective matters asserted in each. Plaintiff fails to persuade the Court that anything further is required.

Request for Admission No. 4, 10-15, 21-25: The Motion is DENIED as to these Requests. Auberge denied the truth of the respective matters asserted in each. Plaintiff fails to persuade the Court that anything further is required.

Request for Admission No. 28: The Motion is DENIED as to this Request. Auberge responded that it “is without knowledge as to the facts at issue in this Request and after making a reasonable inquiry, Responding Party can neither admit nor deny in response to this Request.” (RSS at

115:27-116:1.) The Court finds that the response complies with Section 2033.220, subdivisions (b)(3) and (c). Plaintiff fails to persuade the Court that anything further is required.

H. INTERROGATORIES

As noted above, “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that...[a]n answer to a particular interrogatory is evasive or incomplete...[a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate...[or]...[a]n objection to an interrogatory is without merit or too general.” (§ 2030.300, subd. (a).)

A party upon whom interrogatories are propounded, ‘has a general duty to conduct a reasonable investigation to obtain responsive information [citation] and must furnish information from all sources under his or her control. [Citation.]’ (*Regency Health Services, Inc. v. Super. Ct.* (1998) 64 Cal.App.4th 1496, 1504 (*Regency Health*)). “Verification of the answers is in effect a declaration *that the party has disclosed all information which is available to him*. If only partial answers can be supplied, the answers should reveal all information then available to the party. If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.” (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782 (*Deyo*)). Italics added.)

Form Interrogatory No. 4.1, 12.1, 12.2, 12.3, 12.6, 13.1, 13.2: The Motion is DENIED as to these interrogatories. The respective substantive answer to each appears to be complete and code compliant. Plaintiff fails to persuade the Court that it is deficient or that anything further is required.

Form Interrogatory No. 12.4: The Motion is GRANTED as to this interrogatory.

While the interrogatory asks if Auberge or anyone acting on its behalf knows of any photographs, films, or videotapes regarding the INCIDENT, Auberge responds only that it “does not have any recordings relevant to Plaintiff’s Complaint.” (RSS at 185:1-2.) The answer is non-responsive.

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory No. 12.5: The Motion is GRANTED as to this interrogatory.

While the interrogatory asks if Auberge or anyone acting on its behalf knows of any diagram, reproduction, or model regarding the INCIDENT, Auberge responds only that it “does not have any diagrams, reproductions, or models relevant to Plaintiff’s Complaint.” (RSS at 187:12-13.) The answer is non-responsive.

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory No. 12.7: The Motion is GRANTED as to this interrogatory.

While the interrogatory asks if Auberge or anyone acting on its behalf inspected the scene, Auberge responds only that “[n]o reports were made to the best of Responding Party’s knowledge.” (RSS at 192:12-13.) The answer is non-responsive.

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory No. 17.1: The Motion is DENIED as to this interrogatory. Auberge provided a substantive response. (See RSS at 199:7-203:18.) Plaintiff fails to persuade the Court that anything further is required.

Form Interrogatory Nos. 200.1, 200.4, 200.6, 211.1: The Motion is DENIED as to these interrogatories. Each seeks information specifically relating to an “Employment relationship” between Plaintiff and Auberge. (See Declaration of Michael Seville, Exh. 1, at § 4, subd. (c)-(e), p. 2 (Seville Dec.)) Auberge responded, to each interrogatory, that “Responding Party was not Plaintiff’s employer at any time relevant to Plaintiff’s complaint.” The Court finds that this answer renders each of these interrogatories moot. As to 200.6, Auberge responded “No.”

Form Interrogatory Nos. 201.4, 201.5, 201.6: The Motion is DENIED as to these interrogatories. Each appears to be a follow up to Form Interrogatory Nos. 201.1, 201.2, and/or 201.3. (See, e.g., Interrogatory No. 201.4 [“Was the TERMINATION or any other ADVERSE EMPLOYMENT ACTIONS referred to in Interrogatories 201.1 through 201.3 based in whole or in part on the EMPLOYEE’S job performance?”].) However, Plaintiff propounded none of Form Interrogatory Nos. 201.1, 201.2, or 201.3. (See Seville Decl., Exh. 1 at p. 3.)

Moreover, each of these interrogatories seeks information specifically relating to an “Employment relationship” between Plaintiff and Auberge. (See Declaration of Michael Seville, Exh. 1, at § 4, subd. (c)-(e), p. 2 (Seville Dec.)) Auberge responded, to each interrogatory, that “Responding Party was not Plaintiff’s employer at any time relevant to Plaintiff’s complaint.” The Court finds that this answer renders each interrogatory moot.

Form Interrogatory Nos. 207.1, 207.2: The Motion is DENIED as to these interrogatories. No 207.1 is overbroad to the extent it seeks documents that do not govern Plaintiff’s relationship with his employer. Auberge has denied it has any Plaintiff-related documents. Auberge responded that it received no complaints from Plaintiff, therefore no responsive documents exist.

Form Interrogatory Nos. 211.2, 214.1, 214.2, 215.1, and 215.2: The Motion is DENIED as to these interrogatories. The respective substantive answers appear to be complete and code compliant. Plaintiff fails to persuade the Court that either is deficient or that anything further is required.

Form Interrogatory No. 216.1. The Motion is GRANTED as to this interrogatory. Auberge's answer is non-responsive. "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . ." (§ 2030.220; see also *Deyo*, *supra*, 84 Cal.App.3d 782 ["If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control."]) The interrogatory is not rendered moot by Auberge's denial of an employment relationship. Auberge shall prepare a full and complete response to this interrogatory, subject only to attorney-client privilege and attorney work product protection.

Special Interrogatory Nos. 1, 2, 4, 6, 8-9, 11, 15-16, 26-27, 29: The Motion is DENIED as to these interrogatories. The respective substantive answer to each appears to be complete and code compliant. Plaintiff fails to persuade the Court that any are deficient or that anything further is required.

Special Interrogatory No. 3: The Motion is GRANTED as to this interrogatory.

Auberge identifies an individual through its substantive response to Special Interrogatory No. 2. However, it fails to respond to this follow up interrogatory. Based on the foregoing, the Court finds that the response is insufficient and/or incomplete. "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . ." (§ 2030.220; see also *Deyo*, *supra*, 84 Cal.App.3d 782 ["If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control."])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 5: The Motion is DENIED as to this interrogatory.

The interrogatory asks Auberge to identify documents "related to or containing any complaints." (RSS at 89:3.) Auberge responded that it "Plaintiff [*sic*] is unaware of any complaints regarding any guests of Stanly Ranch." (See RSS at 89:25-26.) Employee complaints regarding guests at Auberge implicate the right to privacy of third party Auberge guests and employees and need not be produced.

Special Interrogatory No. 12 and 23: The Motion is GRANTED as to these interrogatories. Auberge refused to provide any substantive response to the interrogatories. (See RSS at 131:25-132:4, 154:9-10.) As to third-party right to privacy, Auberge may redact the complainant's name as well as the guest's name. Auberge fails to justify any other of its asserted objections. As such, all such objections, save those based on third party right to privacy, attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory Nos. 13-14, 17-18 22, 24: The Motion is GRANTED as to these interrogatories. Auberge's substantive answer to each indicates an involvement, but fails to respond to the interrogatory. Auberge fails to justify any of its asserted objections. The assertion

that Auberge was not Plaintiff's employer has no clear impact on the relevance of the interrogatory. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory Nos. 19 - 21: The Motion is GRANTED as to this interrogatory.

No. 19 and 20 are overbroad to the extent they seek documents related to Auberge's internal operations. Auberge shall respond to these interrogatories with respect to SRGA.

No. 21 asks Auberge to identify "all PERSONS at YOUR company who were consulted, notified, or involved in any way regarding the decision to terminate PLAINTIFF'S employment." (RSS at 150:2-3.) Auberge responded that "[t]he individuals employed at Stanly Ranch are not and have never been Responding Party's employees." (See RSS at 150:14-15.) The answer is non-responsive. "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . ." (§ 2030.220; see also *Deyo, supra*, 84 Cal.App.3d 782 ["If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control."])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 25: The Motion is GRANTED as to this interrogatory. Auberge's substantive response does not address the question. Auberge fails to justify any of its asserted objections, other than third party privacy rights. While the Court is sympathetic to Auberge's original objection that the interrogatory is vague and ambiguous, Auberge did not renew, discuss, or argue that objection in responding to the Motion. (See RSS at 159:4-21.) As such, all of Auberge's objections, save those based on third party right to privacy, attorney-client privilege and/or attorney work product are overruled. Auberge may redact the name of the third party employees.

Special Interrogatory No. 28: The Motion is GRANTED as to this interrogatory. Auberge fails to respond to the interrogatory. Auberge fails to justify any of its asserted objections. The assertion that Auberge was not Plaintiff's employer has no clear impact on the relevance of the interrogatory. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

I. REQUESTS FOR PRODUCTION

The burden on the propounding party is higher in compelling responses to production of documents than in compelling responses to interrogatories. The motion to compel must "set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) "[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance." (*Kirkland v. Super. Ct.* (2002) 95 Cal.App.4th, 92 98.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating

its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Super. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland v. Super. Ct.*, *supra*, at 98.)

Request for Production No. 1-4, 7-9, 11-12: The Motion is DENIED as to these requests.

These requests each seek documents relating to Plaintiff’s employment with Auberge. However, Auberge replied that “it was not Plaintiff’s employer at any time relevant to the Complaint and as a result, Responding Party is not in possession of Plaintiff’s employment records.” (See, *e.g.*, RSS at 48:24-25.) In this context, Plaintiff fails to make a showing of good cause for the discovery.

Request for Production Nos. 5-6: The Motion is DENIED as to these Requests.

Auberge responded that “Responding Party cannot comply with this request because the requested documents are not in the possession, control or custody of Responding Party. A diligent and reasonable search was made to locate these documents. Responding Party was not Plaintiff’s employer at any time relevant to the Complaint. As a result, Responding Party did not directly set any policies applicable to Plaintiff’s employment.” (RSS at 58:2-6.)

These requests are overbroad as to Auberge-only related documents. The Court finds that Auberge has responded that, after diligent and reasonable search, it has not Stanley Ranch related documents that would be responsive to these requests.

Request for Production No. 10: The Motion is DENIED as to this Request.

The Court finds, from a review of the pleadings, good cause for the documents sought by this request.

Auberge responded to the request by answering “Responding Party cannot comply with this request because the requested documents are not in the possession, control or custody of Responding Party. A diligent and reasonable search was made to locate these documents. Responding Party did not have any contracts with Robert Pausmith.” (RSS at 68:23-25.) The Court finds that a reasonable inference from the last statement is that no responsive documents ever existed in Auberge’s possession, custody, or control. The Court, therefore, finds that the response satisfies the requirements of Section 2031.230.)

Plaintiff fails to persuade the Court that anything further is required.

J. SANCTIONS

The Court finds that other circumstances make the imposition of sanctions unjust. (See §§ 2030.300, subd. (d), and 2031.310, subd. (h).)

“‘It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system

is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

The disputes presented by the instant motion reflect a failure on the part of counsel for each party to work to honor their client’s discovery obligations. None of the scores of disputes presented were difficult for the Court to resolve. None represented a balancing of competing rights. Rather, it appears to the Court that the parties ignored their respective rights and obligations under the Civil Discovery Act, and engaged in significant overreach. By its Minute Order of July 16, 2026, the Court noted that counsels’ meet and confer efforts appeared to have been perfunctory. The Court specifically noted weaknesses in the positions taken by each of the parties, and ordered the parties to meet and confer further. The parties’ failure to make any significant progress towards resolving the instant dispute, despite the Court’s guidance regarding their respective arguments, is striking.

Based on the foregoing, Plaintiff’s request for an award of monetary sanctions is DENIED.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Angelita Deguzman

23PR000219

SECOND AND FINAL ACCOUNTING AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND ESTATE, FOR ATTORNEY FEES, AND FOR TERMINATION OF CONSERVATORSHIP

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. The Court has been informed that the Conservatee is deceased. The Conservatorship is therefore terminated.

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In the Matter of Lonna Lee Garza Trust

26-52729

PETITION CONCERNING INTERNAL AFFAIRS OF TRUST AND FOR ORDER:
(1) APPROVING TWELFTH AND THIRTEENTH TRUST ACCOUNTS AND REPORTS OF TRUSTEE, AND (2) APPROVING TRUSTEE COMPENSATION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Stacee Cootes v. Vincent Spohn et al

24CV000657

[1] DEFENDANTS’ MOTION TO COMPEL INTERROGATORY RESPONSES AND REQUEST FOR MONETARY SANCTIONS IN AN AMOUNT NO LESS THAN \$960

TENTATIVE RULING: The Motion is GRANTED. Plaintiff is ordered to serve, within 10 calendar days from the Notice of Entry of Order, a verified supplemental response to Special Interrogatory, Set One, No. 12 in accordance with this ruling. Plaintiff’s counsel is ordered to pay to Defendants, care of their attorney of record, sanctions in the amount of \$460, within 10 calendar days from Notice of Entry of Order. Defendants are directed provide Notice of Entry of this Order.

A. PROCEDURAL MATTERS

Defendants Vincent Spohn and Law Offices of Vincent M. Spohn (collectively, “Attorney Spohn”), and Bruce Ketron (with Attorney Spohn, “Defendants”) move, pursuant to Code of Civil Procedure section 2030.300, for an order compelling Plaintiff Stacee Cootes to serve verified supplemental responses to Attorney Spohn’s Special Interrogatories, Set One, No. 12. Defendants further move for an order awarding monetary sanctions in favor of Defendants in the amount of \$960.00 against Plaintiff and/or her counsel, Eric B. Seuthe of Law Offices of Eric Bryan Seuthe & Associates.

By Minute Order dated July 14, 2026, the Motion was continued to allow Defendants to provide sufficient notice of the Motions. On July 14, 2026, Defendants filed an Amended Notice with the continued hearing date and a Proof of Service demonstrating proper service. There is no Opposition on file as of the time the Court has prepared this Tentative Ruling, which is after the statutory deadline to file and serve an opposition to a motion. (§ 1005, subd. (b).)³

B. LEGAL STANDARD

On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems an answer to a particular interrogatory is evasive or incomplete. (§ 2030.300, subd. (a)(1).)

If a timely motion to compel is filed, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but “the burden of justifying any objection and failure to respond remains at all times with the party resisting an

³ Plaintiff filed a late opposition on August 10, 2026, three days before the hearing. An opposition filed after the deadline for a moving party to file a reply is inherently prejudicial to the moving party. Plaintiff’s opposition offers no reason for her failure to comply with the Code of Civil Procedure. The Court has previously cautioned Plaintiff’s counsel that the Court may elect to disregard her nonconforming papers should she continue to fail to comply with procedural laws. (See 12/6/24 Minute Order.) For all of these reasons, the opposition is disregarded. (Rules of Court, rule 3.1300, subdivision (d).)

interrogatory.” (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21.) To show an interrogatory seeks relevant, discoverable information “is not the burden of [the party propounding interrogatories]. As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422.)

“Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. ... If an interrogatory cannot be answered completely, it shall be answered to the extent possible. ... If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (§ 2030.220, subds. (a)-(c).)

C. DISCUSSION

Defendants argue that Plaintiff failed to provide a complete and accurate response to Special Interrogatory No. 12. Special Interrogatory, Set One, No. 12 asks Plaintiff to identify the last known contact information for Laurie Carlson, including telephone number, email, and address. (Separate Statement, p. 2.) Plaintiff provided Ms. Carlson’s email address and states she does not know her last known telephone number or last known address. (*Ibid.*)

Defendants show good cause for the Interrogatory. Specifically, Defendants argue that Ms. Carlson is the sole individual who allegedly informed Plaintiff of Defendant Spohn’s alleged 5150 holds “which purportedly implicated his ability to represent Plaintiff in the Underlying Action.” (*Id.*) Thus, Defendants contend that Ms. Carlson has critical information relating to Plaintiff’s claims against Defendants. (*Id.*) Defendants assert they have been unable to locate Ms. Carlson and, without Ms. Carlson’s contact information, Defendants are unable to properly serve subpoenas on her via personal service.

In support of their contention that the response is incomplete and/or inaccurate, Defendants show that Plaintiff’s prior document production and deposition testimony confirm that Plaintiff has Ms. Carlson’s telephone number. (See Mem., 5:7-9, citing Exhibit A at p. 172:8-18; Exh. D.) This tends to show that Plaintiff has been in contact with Ms. Carlson via telephone, in which case a response solely stating that Plaintiff does not know Ms. Carlson’s telephone number is, at most, inaccurate and, at least, incomplete for failure to explain the discrepancy. Moreover, Plaintiff’s response fails to state that she made a reasonable and good faith effort to obtain the information and still does not have personal knowledge sufficient to respond fully.

Based on the foregoing, the Motion is GRANTED.

D. SANCTIONS

“[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2030.300, subd. (d).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

A court may impose sanctions against an attorney only if the attorney advised the client to engage in the improper conduct. (*Kwan Software Eng'g, Inc. v Hennings* (2020) 58 Cal.App.5th 57, 81, 85.) Whether the attorney gave such advice is known only to the attorney and his client and therefore the attorney has the burden of proving he gave no such advice. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 799-804.) Here, Plaintiff's counsel provides no evidence that he did not advise his client as to the deficiencies raised through the Motion. As such, sanctions against Plaintiff's counsel is permitted.

The Court finds neither that Plaintiff's counsel acted with substantial justification nor that other circumstances make imposition of sanctions unjust. Plaintiff's counsel failed to file a timely Opposition and failed to respond to Defendants' meet and confer efforts to avoid this motion. (See Declaration of Kristin C. Choi (“Choi Decl.”), ¶ 7.) The Court finds that the hourly rate charged by counsel is reasonable. (*Id.* at ¶¶ 8-10.) Defendants' counsel fails to assert the reasonable number of billable hours for preparation of the present motion (instead, only addressing the concurrent motion as to document demands). (*Id.*, ¶ 11.) That said, the Court finds that 2 hours is a reasonable number of billable hours for preparation of the motion.

Based on the foregoing, Defendants request for sanctions as against Plaintiff is GRANTED IN PART. Plaintiff's counsel is ordered to pay to Defendants, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of (2 hrs x \$230/hr) = \$460.

[2] DEFENDANTS' MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO; TO COMPEL PRODUCTION OF DOCUMENTS; COMPEL COMPLIANCE; AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,460

TENTATIVE RULING: The Motion is GRANTED IN PART and DENIED IN PART. The Motion to Compel Further Responses to Document Demands Nos. 33-44 is DENIED. The Motion to Compel Compliance with Responses to Document Demands Nos. 51-52 is GRANTED. Plaintiff is ordered to produce, within 10 calendar days from the Notice of Entry of Order, documents responsive to Nos. 51-52. Plaintiff's counsel is ordered to pay to Defendants, care of their attorney of record, sanctions in the amount of \$230, within 10 calendar days from Notice of Entry of Order. Defendants are directed provide Notice of Entry of this Order.

A. PROCEDURAL MATTERS

Defendants Vincent Spohn and Law Offices of Vincent M. Spohn (collectively, “Attorney Spohn”), and Bruce Ketron (with Attorney Spohn, “Defendants”) move, pursuant to Code of Civil Procedure sections 2031.310 and 2031.320, for an order compelling Plaintiff Stacey Coates to further respond to Attorney Spohn’s Request for Production of Documents, Set Two, (“Document Demands”) Nos. 33-44 and to comply with Plaintiff’s agreement to produce documents responsive to Document Demands Nos. 51-52. Defendants further move for an order granting monetary sanctions in the amount of \$1,460 against Plaintiff and/or her counsel, Eric B. Seuthe of Law Offices of Eric Bryan Seuthe & Associates.

By Minute Order dated July 14, 2026, the Motion was continued to allow Defendants to provide sufficient notice of the Motions. On July 14, 2026, Defendants filed an Amended Notice with the continued hearing date and a Proof of Service demonstrating proper service. There is no Opposition on file as of the time the Court has prepared this Tentative Ruling, which is after the statutory deadline to file and serve an opposition to a motion. (§ 1005, subd. (b).)⁴

B. DISCUSSION

1. Motion to Compel Further Responses is Denied

On receipt of a response to a document demand, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (§ 2031.310, subd. (a).)

A party moving to compel responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (§ 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Sup. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

Document Demand Nos. 33-40 seek documents reflecting any input into and output by ChatGPT, OpenAI, Google Gemini, Microsoft Copilot, Anthropic Claude, or any other

⁴ Plaintiff filed a late opposition on August 10, 2026, three days before the hearing. An opposition filed after the deadline for a moving party to file a reply is inherently prejudicial to the moving party. Plaintiff’s opposition offers no reason for her failure to comply with the Code of Civil Procedure. The Court has previously cautioned Plaintiff’s counsel that the Court may elect to disregard her nonconforming papers should she continue to fail to comply with procedural laws. (See 12/6/24 Minute Order.) For all of these reasons, the opposition is disregarded. (Rules of Court, rule 3.1300, subdivision (d).)

generative acritical intelligence model, application, or software used by Plaintiff for or related to a variety of defined actions, including the present litigation. (See Separate Statement.)

Plaintiff objected based on a host of grounds, including attorney-client privilege and work product doctrine. (*Ibid.*) Subject to the objections, Plaintiff responded that “[she] has concluded a reasonable search and has found no documents within their possession, custody, or control,” explaining that the AI systems do not keep a history of documents. (*Id.*) Plaintiff further responded that she has already produced responsive records. (*Id.*)

As an initial matter, Defendants’ Separate Statement does not include the definitions for the actions referenced in Nos. 34-36 and 38-40. Defendants therefore failed to comply with Rules of Court, rule 3.1345(c)(4). Moreover, Defendants’ Memorandum does not address or define those referenced actions. As a result, Defendants have failed to provide sufficient information upon which the Court can consider the good cause for these Document Demands.

Furthermore, the Court finds that Defendants have not met their burden on the Motion. Defendants’ discussion of good cause is brief and perfunctory. The universe of Defendants’ argument is that the ChatGPT responses are relevant to Defendants’ defense against Plaintiff’s claims because Plaintiff conceded that she relied on ChatGPT to inform her of her theories supporting various claims, including whether Defendant Ketron gave her legal advice in the Underlying Action, and that documents produced by Plaintiff on April 10, 2026 reflect Plaintiff’s use of ChatGPT. (Mem., 3:1-12, 6:15-17, 8:5-6, citing Exh. A, at 123:19-124:7, and Exh. C; Notice of Motion, 2:6-12.)

Defendants’ argument is essentially that the documents are relevant because they exist. Defendants do not set forth a fact-specific showing of relevance, or state how the documents might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.

To the contrary, the fact that Plaintiff used AI platforms to determine certain legal theories pursued in this matter does not strike the Court as relevant to assisting Defendants in evaluating their case, preparing for trial, or facilitating a settlement. According to Defendants, the AI platforms helped form the underlying bases asserted through Plaintiff’s pleadings. The fact that someone researched their potential legal claims based on facts known to them, does not make all research results or the searches relevant. Moreover, in this context, the AI results are not facts relevant to prove or disprove those legal bases. Nor is it necessarily true that all research searches or results from the AI platforms are, in fact, being pursued. Defendants offer no reason why the research documents need to be independently studied when, presumably, the legal theories contained in Plaintiff’s pleadings reflect the results from Plaintiff’s research.

Based on the foregoing, Defendants have failed to show good cause justifying the discovery sought by Document Demands. This finding renders it unnecessary for the Court to reach the sufficiency of Plaintiff’s response to these document demands. The motion to compel further responses is DENIED.

2. Motion to Compel Compliance is Granted

If the responding party agrees to comply with a section 2031.010 demand but then fails to do so, compliance may be compelled on appropriate motion. (§ 2031.320.) All that has to be shown is the responding party's failure to comply as agreed. (*Ibid.*; see *Standon Co., Inc. v. Sup.Ct. (Kim)* (1990) 225 Cal.App.3d 898, 903.)

In response to these Document Demands, Plaintiff responded that she "is producing all responsive documents in their possession, custody, or control as Exhibit 51." (Separate Statement, pp. 32-33.) Defendants argue that Plaintiff has not complied with her verified statement that she would produce responsive documents to Nos. 51-52. (Mem., 4:11-15, citing Exh. D.)

Based on the foregoing, the motion to compel compliance is GRANTED. Plaintiff is ordered to produce documents responsive to Nos. 51-52 within 10 calendar days from Notice of Entry of Order.

3. Sanctions

In light of the ruling denying Defendants' motion to compel further responses, Defendants' request for sanctions thereon is DENIED. (§ 2030.310, subd. (h).)

"The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (§ 2031.320, subd. (b).) Moreover, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

A court may impose sanctions against an attorney only if the attorney advised the client to engage in the improper conduct. (*Kwan Software Eng'g, Inc. v Hennings* (2020) 58 Cal.App.5th 57, 81, 85.) Whether the attorney gave such advice is known only to the attorney and his client and therefore the attorney has the burden of proving he gave no such advice. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 799-804.) Here, Plaintiff's counsel provides no evidence that he did not advise his client as to the deficiencies raised through the Motion. As such, sanctions against Plaintiff's counsel is permitted.

The Court finds neither that Plaintiff's counsel acted with substantial justification nor that other circumstances make imposition of sanctions unjust. Plaintiff's counsel failed to file a timely Opposition and failed to respond to Defendants' meet and confer efforts to avoid this motion. (See Declaration of Kristin C. Choi ("Choi Decl."), ¶¶ 5-6.) The Court finds that the hourly rate charged by counsel is reasonable. (*Id.* at ¶¶ 8-10.) Defendants' counsel provides the total amount of hours spent on the combined motion to compel further responses and motion to compel compliance. (*Id.*, ¶ 11.) Given that Defendants were unsuccessful on the motion to

compel further responses, the Court does not find it reasonable to sanction Plaintiff for the total amount of hours spent on the combined motion. That said, the Court finds that 1 hour is a reasonable number of billable hours for preparation of the motion to compel compliance.

Based on the foregoing, Defendants request for sanctions as against Plaintiff is GRANTED IN PART. Plaintiff's counsel is ordered to pay to Defendants, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of (1 hr x \$230/hr) = \$230.

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Creditors Adjustment Bureau, Inc. v. Rodrigo Barrera Lara et al **26CV000234**

[1] MOTION TO COMPEL RESPONSES TO PLAINTIFF'S DEMAND FOR IDENTIFICATION, PRODUCTION, INSPECTION AND COPYING OF DOCUMENTS AND OTHER TANGIBLE THINGS; REQUEST FOR MONETARY SANCTIONS [as to Defendant Rodrigo Barrera Lara]

TENTATIVE RULING: The motion is GRANTED. Within 10 calendar days of service of notice of entry of order, Barrera shall (1) serve verified code-compliant responses, without objections, to Plaintiff's First Set of Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things; and (2) pay to Plaintiff, care of its attorney of record, sanctions in the amount of \$572.75. Plaintiff shall provide notice of entry of this order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") moves, pursuant to Code of Civil Procedure, section 2031.300,⁵ for an order compelling Defendant Rodrigo Barrera Lara ("Barrera") to provide responses to Plaintiff's First Set of Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things ("Demands"). Plaintiff also moves, pursuant to sections 2023.010, 2023.030, and 2031.300, for monetary sanctions against Barrera in the amount of \$2,472.75 for the reasonable expenses and attorney's fees incurred by the moving party in connection with this motion.

If a party to whom requests for production of documents were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (§ 2031.300, subs. (a)-(c).) All that need be shown in the moving papers is that a request for production was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has

⁵ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a “reasonable and good faith attempt” to resolve the matter informally with opposing counsel before filing the motion. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of George Aposhian (“Aposhian Decl.”) at ¶¶ 3, 5, Exh. 1.) Thus, Barrera shall serve verified code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (§ 2031.300, subds. (a)-(b).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2031.300, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Barrera acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as he has failed to file an opposition to the motion. The Court does not find the hourly rate charged by Plaintiff’s counsel reasonable, as it exceeds the range for hourly rates prevailing in the community for similar work. (See Aposhian Decl. at ¶ 6.) The Court reduces counsel’s hourly rate to \$500. The Court does not find 2 hours reasonable for preparation of the straightforward, two-page motion. (*Ibid.*) The Court reduces the hours expended to one hour. Nor does the Court grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff’s request for sanctions as against Barrera is GRANTED IN PART. Barrera is ordered to pay to Plaintiff, care of its attorney of record, sanctions in the amount of \$572.75 [= \$500/hr x 1 hr + \$60 filing fee + \$12.75 e-filing fee] within 10 calendar days of notice of entry of this order.

[2] MOTION TO COMPEL RESPONSES TO PLAINTIFF’S FIRST SET OF SPECIAL INTERROGATORIES; REQUEST FOR MONETARY SANCTIONS [as to Defendant Rodrigo Barrera Lara]

TENTATIVE RULING: The motion is GRANTED. Within 10 calendar days of service of notice of entry of order, Barrera shall (1) serve verified code-compliant responses, without objections, to Plaintiff’s First Set of Special Interrogatories; and (2) pay to Plaintiff, care of its attorney of record, sanctions in the amount of \$572.75. Plaintiff shall provide notice of entry of this order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") moves, pursuant to Code of Civil Procedure, section 2030.290,⁶ for an order compelling Defendant Rodrigo Barrera Lara ("Barrera") to provide responses to Plaintiff's First Set of Special Interrogatories. Plaintiff also moves, pursuant to sections 2023.010, 2023.030, and 2030.290, for monetary sanctions against Barrera in the amount of \$2,472.75 for the reasonable expenses and attorney's fees incurred by the moving party in connection with this motion.

If a party to whom interrogatories were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (§ 2030.290, subds. (a)-(c).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a "reasonable and good faith attempt" to resolve the matter informally with opposing counsel before filing the motion. (§ 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of George Aposhian ("Aposhian Decl.") at ¶¶ 3, 5, Exh. 1.) Thus, Barrera shall serve verified code-compliant responses, without objections, within 10 calendar days of service of notice of entry of order. (§ 2030.290, subds. (a)-(b).)

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (§ 2030.290, subd. (c).) Moreover, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Barrera acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as he has failed to file an opposition to the motion. The Court does not find the hourly rate charged by Plaintiff's counsel reasonable, as it exceeds the range for hourly rates prevailing in the community for similar work. (See Aposhian Decl. at ¶ 6.) The Court reduces counsel's hourly rate to \$500. The Court does not find 2 hours reasonable for preparation of the straightforward, two-page motion. (*Ibid.*) The Court reduces the

⁶ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

hours expended to one hour. Nor does the Court grant sanctions for estimated future fees. (See *ibid.*)

Based on the foregoing, Plaintiff's request for sanctions as against Barrera is GRANTED IN PART. Barrera is ordered to pay to Plaintiff, care of its attorney of record, sanctions in the amount of \$572.75 [= \$500/hr x 1 hr + \$60 filing fee + \$12.75 e-filing fee] within 10 calendar days of notice of entry of this order.

[3] MOTION TO COMPEL RESPONSES TO PLAINTIFF'S DEMAND FOR IDENTIFICATION, PRODUCTION INSPECTION AND COPYING OF DOCUMENTS AND OTHER TANGIBLE THINGS; REQUEST FOR MONETARY SANCTIONS [as to Defendant General Contractor Inc.]

TENTATIVE RULING: The motion is DENIED.

Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") moves, pursuant to Code of Civil Procedure, sections 2023.010, 2023.030 2031.300, for an order compelling Defendant General Contractor Inc. ("General Contractor Inc.") to provide responses to Plaintiffs First Set of Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things, and for monetary sanctions in the amount of \$2,472.75.

The motion is improper as the Court lacks jurisdiction over General Contractor Inc. There is no Proof of Service of the Summons and Complaint on General Contractor Inc., and there is no indication, from the Court file, that General Contractor Inc. has appeared in the action or otherwise waived service. (See *AO Alfa-Bank v. Yakovlev* (2018) 21 Cal.App.5th 189, 202 ["In the absence of service of process (or waiver of service by the defendant), a court ordinarily may not exercise power over a party the complaint names as defendant."].) Contrary to Plaintiff's counsel's declaration, there is no Answer by General Contractor Inc. in the file. (Declaration of George Aposhian ("Aposhian Decl."), ¶ 2.) Rather, the only Answer in the Court file is that by Co-Defendant Rodrigo Barrera Lara. (See 4/2/26 Answer, ¶ 2.) Nor can the Court construe Barrera's Answer, filed *in propria persona*, as being filed on behalf of himself *and* General Contractor Inc. because a corporation cannot represent itself *in propria persona* or through a corporate officer, director or other employee who is not an attorney. (*CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145.)

Given the Court's lack of jurisdiction of General Contractor Inc., the motion brought against it is DENIED.

[4] MOTION TO COMPEL RESPONSES TO PLAINTIFF'S FIRST SET OF SPECIAL INTERROGATORIES; REQUEST FOR MONETARY SANCTIONS [as to Defendant General Contractor Inc.]

TENTATIVE RULING: The motion is DENIED.

Plaintiff Creditors Adjustment Bureau, Inc. (“Plaintiff”) moves, pursuant to Code of Civil Procedure, section 2023.010, 2023.030, and 2033.290, for an order compelling Defendant General Contractor Inc. (“General Contractor Inc.”) to provide responses to Plaintiffs First Set of Special Interrogatories, and for monetary sanctions in the amount of \$2,472.75.

The motion is improper as the Court lacks jurisdiction over General Contractor Inc. There is no Proof of Service of the Summons and Complaint on General Contractor Inc., and there is no indication, from the Court file, that General Contractor Inc. has appeared in the action or otherwise waived service. (See *AO Alfa-Bank v. Yakovlev* (2018) 21 Cal.App.5th 189, 202 [“In the absence of service of process (or waiver of service by the defendant), a court ordinarily may not exercise power over a party the complaint names as defendant.”].) Contrary to Plaintiff’s counsel’s declaration, there is no Answer by General Contractor Inc. in the file. (Declaration of George Aposhian (“Aposhian Decl.”), ¶ 2.) Rather, the only Answer in the Court file is that by Co-Defendant Rodrigo Barrera Lara. (See 4/2/26 Answer, ¶ 2.) Nor can the Court construe Barrera’s Answer, filed *in propria persona*, as being filed on behalf of himself *and* General Contractor Inc. because a corporation cannot represent itself *in propria persona* or through a corporate officer, director or other employee who is not an attorney. (*CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145.)

Given the Court’s lack of jurisdiction of General Contractor Inc., the motion brought against it is DENIED.